

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR N18
Hon. Scott A. Steiner

Date: September 02, 2026

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#	Case Name	Tentative
4.	2026-1558759 Adawy vs. Mercedes-Benz USA, LLC	Defendant Mercedes-Benz USA, LLC's motion to compel plaintiff Saad Adawy to arbitrate his claims in this action is granted. This action will be stayed pending completion of arbitration. [ROA #17.] <u>Facts</u> This is an action for violation of the Song-Beverly Act. Plaintiff asserts four causes of action under the Act regarding a new Mercedes-Benz, distributed by Defendant, that Plaintiff leased from Fletcher Jones Motorcars. [Complaint (ROA #2), ¶¶ 3-4.] The claims asserted include a claim for breach of express warranty. [<i>Id.</i>, ¶¶ 5, 38-45.] The lease agreement signed by Plaintiff contains an arbitration provision. [Newman Decl. (ROA #15), Ex. C.] The arbitration provision is on the fourth page of a ten-page document. It provides for arbitration of: [a]ny claim or dispute, whether in contract, tort or otherwise (including any dispute over the interpretation, scope, or validity of this lease, arbitration

section or the arbitrability of any issue), **between you and us or any of our employees, agents, successors, assigns, or the vehicle distributor, including Mercedes-Benz USA LLC (each a "Third Party Beneficiary"), which arises out of or relates to a credit application, this lease, or any resulting transaction or relationship arising out of this lease (including any such relationship with third parties who do not sign this contract)**

[*Id.* Bold added.]

The arbitration provision provides that arbitration will be administered by the American Arbitration Association – or whoever else the parties agree to – and provides the website address where AAA rules can be found. Arbitration is expressly governed by the Federal Arbitration Act (9 USC 1, et seq.).

On the sixth page, just above Plaintiff's signature there is an additional warning that signing the lease is an acknowledgement that they have read the entire lease and agree to it "INCLUDING THE IMPORTANT ARBITRATION DISCLOSURES ON PAGES 4 AND 5."

The Service and Warranty information 2026 also contains an arbitration provision with an opt-out provision. [Newman Decl. (ROA ## 15, 18), Ex. B at pp. 7-10.]

Legal Standard

Code Civ. Proc. § 1281.2 provides, *inter alia*:

"On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

- (a) The right to compel arbitration has been waived by the petitioner; or
- (b) Grounds exist for rescission of the agreement.
- (c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. ..."

(Emphasis supplied.)

“‘[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement--either fraud in the execution voiding the agreement, or a statutory defense of waiver or revocation (see § 1281.2, subds. (a), (b))--that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense.’” *Hotels Nevada v. L.A. Pacific Center, Inc.* (2006) 144 Cal.App.4th 754, 761, quoting *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.

While there is a policy in favor of arbitration and doubts are to be resolved in favor of arbitration, there is no public policy in favor of compelling persons to accept arbitration of controversies they have not agreed to arbitrate. *Mitri v. Arnel Management Co.* (2007) 157 Cal.App.4th 1164, 1170; *Greenspan v. LADT, LLC*. (2010) 185 Cal.App.4th 1413, 1437. As a general rule, a party cannot be compelled to arbitrate a dispute that he or she has not agreed to resolve by arbitration. *Buckner v. Tamarin* (2002) 98 Cal.App.4th 140, 142; *Benasra v. Marciano* (2001) 92 Cal.App.4th 987, 990 (“The strong public policy in favor of arbitration does not extend to those who are not parties to an arbitration agreement, and a party cannot be compelled to arbitrate a dispute that he has not agreed to resolve by arbitration”).

As a result, the first step in determining whether to grant a motion to compel contractual arbitration is to determine whether there was, in fact, an agreement to arbitrate the pending dispute.

Discussion

Has Defendant Established the Existence of an Agreement?

In the absence of any evidence that Plaintiff was given or saw the Service and Warranty Information, Defendant has not shown the existence of an arbitration agreement on that basis.

But Defendant has submitted a lease agreement with an arbitration provision that covers Plaintiff’s claims. [Newman Decl., Ex. C at p. 4.] The agreement appears to be signed by Plaintiff, and plaintiff does not deny signing the lease agreement with the arbitration provision in it.

There is no contention that Defendant is a signatory, or successor to a signatory, of the agreement. Plaintiff opposes arbitration on that basis.

“Although the FAA preempts any state law that stands as an obstacle to its objective of enforcing arbitration agreements according to their terms,...we apply general California contract law to determine whether the parties formed a valid agreement to arbitrate their dispute.” *Avery v. Integrated Healthcare Holdings, Inc.* (2013) 218 Cal.App.4th 50, 59–60.

“General contract law principles include that ‘[t]he basic goal of contract interpretation is to give effect to the parties’ mutual intent at the time of contracting.’” *Franco v. Greystone Ridge Condominium* (2019) 39 Cal.App.5th 221, 227. “The words of a contract are to be understood in their ordinary and popular sense.” *Id.* “Furthermore, ‘[t]he whole of a contract is to be taken together, so as to give effect to every part, if reasonably practicable, each clause helping to interpret the other.’” *Id.*

The general rule is that “one must be a party to an arbitration agreement to be bound by it or invoke it.” *DMS Servs., Inc. v. Superior Court* (2012) 205 Cal.App.4th 1346, 1352 (internal quotes and citation omitted). Courts have recognized limited exceptions to this general rule: “there are six theories by which a nonsignatory may be bound to arbitrate: (a) incorporation by reference; (b) assumption; (c) agency; (d) veil-piercing or alter ego; (e) estoppel; and (f) third-party beneficiary.” *Young Seok Suh v. Superior Court* (2010) 181 Cal.App.4th 1504, 1513.

Third-party beneficiary

“A contract, made expressly for the benefit of a third person, may be enforced by him at any time before the parties thereto rescind it.” *Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817, 827.

In order to determine whether Defendant is a “third party beneficiary,” this court must “carefully examin[e] the express provisions of the contract at issue, as well as all of the relevant circumstances under which the contract was agreed to, in order to determine not only (1) whether the third party would in fact benefit from the contract, but also (2) whether a motivating purpose of the contracting parties was to provide a benefit to the third party, and (3) whether permitting a third party to bring its own breach of contract action against a contracting party is consistent with the objectives of the contract and the reasonable expectations of the contracting parties.” *Id.* at 829-830. “All three elements must be satisfied to permit the third-party action to go forward.” *Id.* at 830.

Here, the arbitration agreement unambiguously states that any dispute between Defendant and Plaintiff shall be arbitrated: “Any claim or dispute ... between you and us or ... the vehicle distributor, including Mercedes-Benz USA LLC (each a “Third-Party Beneficiary”), which arises out of or relates to a credit application, this lease, or any resulting transaction or relationship arising out of this lease.” [Newman Decl., Ex. C at 4-5.] Thus, Defendant can compel arbitration of Plaintiff’s claims.

Plaintiff’s citation to *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1128 and arguments that equitable estoppel does not apply are not to the point in light of the express terms of the arbitration provision designating Defendant as a third-party beneficiary of the arbitration agreement.

Plaintiff also contends that the arbitration agreement is unconscionable.

Is the Arbitration Agreement Unenforceable for Unconscionability?

Unconscionability is one ground on which a court may refuse to enforce a contract, including an arbitration agreement. Civ. Code §1670.5. Whether a provision is unconscionable is a question of law. Civ. Code §1670.5(a); *Flores v. Transamerica* (2001) 93 Cal.App.4th 846, 851.

The core concern of unconscionability doctrine is the absence of meaningful choice on the part of one of the parties together with contract terms which are unreasonably favorable to the other party. *Sonic Calabasas A, Inc. v. Moreno*, (2013) 57 Cal.4th 1109, 1145. “If the court as a matter of law finds the contract or any clause of the contract to have been unconscionable at the time it was made the court may refuse to enforce the contract, or it may enforce the remainder of the contract without the unconscionable clause, or it may so limit the application of any unconscionable clause as to avoid any unconscionable result.” Civ. Code §1670.5(a); *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 122. The absence of severability clause is irrelevant to the determination whether the offensive provisions are “severable” for purposes of unconscionability analysis. Severability is decided as a matter of state law. *Terminix Int’l Co., LP v. Palmer Ranch Ltd. Partnership* (11th Cir. 2005) 532 F.3d 1327, 1331.

Unconscionability has a procedural and a substantive element: the procedural element focuses on the existence of oppression or surprise, and the substantive element focuses on overly harsh or

one-sided results. *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.

To be unenforceable, a contract must be both procedurally and substantively unconscionable, but the elements need not be present in the same degree. The analysis employs a sliding scale: "...the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114; *Mercuro v. Superior Court* (2002) 96 Cal.App.4th 167, 174-175.

Procedural Unconscionability

Procedural unconscionability concerns the way the contract was negotiated and the parties' circumstances at that time. It focuses on the factors of oppression or surprise. *Kinney v. United HealthCare Services, Inc.* (1999) 70 Cal.App.4th 1322, 1329.

Procedural unconscionability is often found in contracts of adhesion – i.e. standardized contracts which, imposed and drafted by the party of superior bargaining strength, relegate to the subscribing party only the opportunity to adhere to the contract or to reject it. *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113. "When the weaker party is presented the clause and told to take it or leave it without the opportunity for meaningful negotiation, oppress, and therefore procedural unconscionability, are present." *Szetela v. Discover Bank* (2002) 97 Cal.App.4th 107, 114. *See also Lhotka v. Geographic Expeditions, Inc.* (2010) 181 Cal.App.4th 816, 821-824 (finding take it or leave it contract for recreational activity procedurally unconscionable even though activity not a "necessity"). A "meaningful opportunity to negotiate or reject the terms of a contract requires, at a minimum, that a party have reasonable notice of the opportunity to negotiate or reject the terms of the contract and an actual, meaningful, and reasonable choice to exercise that discretion. *Circuit City Stores, Inc. v. Mantor* (9th Cir. 2003) 335 F.3d 1101, 1106.

"Oppression arises from an inequality of bargaining power which results in no real negotiation and an absence of meaningful choice." *Crippen v. Central Valley RV Outlet* (2004) 124 Cal.App.4th 1159, 1165 (citation omitted). "When the weaker party is presented the clause and told to 'take it or leave it' without the opportunity for meaningful negotiation, oppression, and therefore procedural unconscionability, are present." *Szetela v. Discover Bank* (2002) 97 Cal.App.4th 1094, 1100 (citation omitted).

Surprise usually involves supposedly agreed-upon terms buried in complex documentation. *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal. 4th 83, 114.

Here, Plaintiff contends the arbitration agreement was adhesive. Plaintiff does not provide any evidence on this point, but cite to *Gutierrez v. Autowest, Inc.* (2003) 114 Cal.App.4th 77, 87-88, which found the automobile lease in question there to be adhesive based on “substantial evidence” that it was presented on a take it or leave it basis as well as the fact that the arbitration clause was on the back and no one told the plaintiff it was there. *Id.* at p. 89 (italics added).

Substantive Unconscionability

[S]ubstantive unconscionability focuses on the one-sidedness of the contract terms. In the context of an arbitration agreement, the agreement is unconscionable unless there is a “‘modicum of bilaterality’” in the arbitration remedy. [Citation.] “Although parties are free to contract for asymmetrical remedies and arbitration clauses of varying scope, ... the doctrine of unconscionability limits the extent to which a stronger party may, through a contract of adhesion, impose the arbitration forum on the weaker party without accepting that forum for itself.” [Citation.]

Flores v. Transamerica HomeFirst, Inc. (2001) 93 Cal.App.4th 846, 854.

To be substantively unconscionable, contract terms must be “unduly harsh, oppressive, or one-sided.” *Sanchez v. Carmax Auto Superstores California, LLC* (2014) 224 Cal.App.4th 398, 403.

Plaintiff does not identify any provision in the arbitration agreement that he claims is harsh, oppressive, or one-sided. Plaintiff only points to lack of “mutuality” given that “[d]isputes arising out of or relating to the lease that involve the manufacturer are, as a practical matter, brought only by consumers. The clause therefore strips consumers of a jury trial while giving MBUSA a forum advantage and no reciprocal burden.” [Opp. (ROA #37) at 9:17-20.] Plaintiff presents no evidence to support the broad assertion of fact on which he predicates his conclusion that Defendant receives an advantage without a reciprocal burden. Indeed, regardless of whose claim it is, Defendant gives up a jury trial along with Plaintiff. Further, where the jury waiver stems from the nature of arbitration itself, which is incompatible with a jury trial, unconscionability has been held not to exist. *See Prima Donna Dev. Corp. v. Wells Fargo Bank* (2019) 42 Cal.App.5th 22, 43, 44.

		Having failed to show any substantive unconscionability, Plaintiff has not shown a defense to enforcement of the arbitration agreement. Finally, Plaintiff argues that Defendant waived its right to arbitration by its served initial disclosures under Code of Civil Procedure section 871.26. [David Decl. (ROA #33), ¶¶ 3-4.] <i>Waiver?</i> Waiver of rights under an arbitration agreement is to be determined by the same standard as would be applied to any contract and not under an “arbitration-specific rule.” <i>Quach v. California Commerce Club, Inc.</i> (2024) 16 Cal.5th 562, 580, 583. Accordingly, no showing of prejudice is required to establish waiver. <i>Id.</i> at 583-585. Rather, “[t]he waiver inquiry is exclusively focused on the waiving party’s words or conduct; neither the effect of that conduct on the party seeking to avoid enforcement of the contractual right nor that party’s subjective evaluation of the waiving party’s intent is relevant.” <i>Id.</i> at 585 (citation omitted). Intentional relinquishment must be shown by clear and convincing evidence, however. <i>Id.</i> at 584. A party may be found to have waived its right to arbitration by delaying any arbitration demand and choosing, instead, to litigate his claims. <i>See Kokubu v. Sudo</i> (2022) 76 Cal.App.5th 1074, 1085 (affirming denial of motion to compel arbitration upon finding of waiver: “Until filing their motion to compel in December 2020, Appellants proceeded in the same manner as a party without any right to arbitrate, participating in case management conferences, filing motions, seeking ex parte relief, and seeking and participating in discovery.”) Plaintiff points to the fact that Defendant made the disclosure required under Code of Civil Procedure section 871.26 in Song-Beverly actions where the defendant manufacturer has previously (that is, not just for purposes of a single lawsuit) opted into the statutory discovery scheme. <i>See</i> Code Civ. Proc. §871.20 (“Notwithstanding any other law, this chapter applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty.”).
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		The timing of the disclosure was not something Defendant chose but is set by the statute. Notably, the disclosure took place <i>after</i> Defendant filed its motion to compel arbitration, thus showing its intent to pursue its right to arbitration. [David Decl., ¶¶ 3-4.] This record does not show, by clear and convincing evidence or otherwise, that Defendant has “intentionally relinquished or abandoned” its right to arbitrate. Accordingly, the court finds that Defendant has not waived its right to arbitration. Plaintiff also objects that Defendant did not demand arbitration, and await Plaintiff’s refusal, prior to moving to compel. [Opp. at 4; David Decl., ¶ 2.] <i>See</i> Code Civ. Proc. §1281.2 (“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate....”) But, here, the fact that Plaintiff has already filed his lawsuit, “suffice[s] to show [his] refusal to arbitrate the controversy.” <i>Hyundai Amco America, Inc. v. S3H, Inc.</i> (2014) 232 Cal.App.4th 572, 577–578. The motion to compel arbitration is granted.
5.	2024-1394324 Meador vs. Bricks and Mortar Entertainment LLC	Defendant requests the Court exercise its discretion to strike the corrected costs memorandum under CCP section 1033, subdivision (a). The Court declines to do so and denies the motion to strike. The motion to tax the costs in Plaintiff’s corrected memorandum of costs (ROA 312) is granted in part and denied in part. “The right to recover costs is entirely a creature of statute (citation), and section 1032 is ‘the fundamental authority for awarding costs in civil actions.’” (<i>Brown v. Desert Christian Center</i> (2011) 193 Cal.App.4th 733, 737–738, citations omitted.) Code of Civil Procedure section 1032, subdivision (b), provides that a “prevailing party” is entitled to costs “as a matter of right.” “Code of Civil Procedure section 1033 enumerates allowable costs and costs which are not allowable, and restricts allowable costs to those reasonably necessary to the conduct of the litigation.” (<i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 129.) Where items on the costs bill appear to be proper charges, “the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant[.]” (<i>Id.</i> at p. 131.) The burden is on the objecting party to show that costs are unnecessary or unreasonable. (<i>Litt v. Eisenhower Medical Center</i> (2015) 237 Cal.App.4th 1217, 1224.)

For the reasons explained, below, the motion to tax is granted in part as to the following items of costs: \$480 for deposition costs; \$274.69 for service of process costs; \$253.41 for e-filing or e-service costs; and, \$703.84 in “other” costs. The remainder of the motion to tax is denied.

Item no. 4: Deposition Costs

Plaintiff claimed \$9,606.01 in deposition costs but, in her opposition, voluntarily withdrew \$1,126.66 for mathematical error and \$2,200 for a non-court ordered expert deposition. Additionally, Onnyx properly put an additional \$480 of deposition costs at issue, including a cancellation fee and miscellaneous deposition fees. Plaintiff did not meet her burden of showing they are recoverable. Accordingly, the Court taxes these costs and awards a total of \$5,799.35 for deposition costs.

Item no. 5: Service of Process

Plaintiff claims \$773.69 in service of process costs. Onnyx seeks to tax \$613.69, because “it is undisputed that the at-issue costs were not part of any effort to prosecute Defendant,” and were incurred for serving “non-parties and third parties.” The Court allows the \$299 for serving process on witnesses to appear at trial. (*Doe v. Los Angeles County Dept. of Children & Family Services* (2019) 37 Cal.App.5th 675, 694 [rejecting argument that prevailing party could not recover service of process fees for witnesses who did not ultimately testify at trial].)

However, the Court grants the motion to tax \$274.69 in service of process costs for *other* defendants. (See *Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 813 [taxing costs for service of process on other defendants dismissed prior to trial; “respondents are responsible only for those costs reasonably incurred by Levy in connection with the commencement and prosecution of the underlying action against them”].) Plaintiff is awarded \$459 in service of process costs.

Item no. 13: Models, Enlargements, and Photocopies of Exhibits

Plaintiff claims \$250 in costs for models, enlargements, and photocopies of exhibits. Onnyx seeks to tax these costs in its entirety, because “Plaintiff only had 24 exhibits at trial.” Plaintiff opposes the motion, because the exhibits “were voluminous” and Plaintiff “had to prepare diagrams and exhibits from Google Earth in addition to trial binders.” The Court finds Plaintiff has shown these costs were reasonably necessary and declines to tax this item in any amount.

Item no. 14: Fees for Electronic Filing or Service

		Plaintiff claims \$594.74 in costs for e-filing or service. Originally, Onnyx sought to tax these costs in their entirety, but, on reply, Onnyx requests that the Court tax \$253.41 and find only \$341.33 is recoverable. Plaintiff has not met her burden of showing the e-filing fees are <i>all</i> recoverable. The Court taxes this item, in part, and awards a total of \$341.33 in e-filing or e-service fees. <u>Item no. 15: Other</u> Plaintiff claims \$917.54 under “other,” which includes costs for “court reporter transcript fees, document retrieval and subpoena of documents fees.” Plaintiff claims she should be allowed to recover these discretionary costs, because she “ordered transcripts to prepare for closing argument and for post-trial motions”; and “[t]here is no authority for Defendant’s position that transcript fees are not recoverable for post-trial motions.” The Court taxes \$703.84 in transcript fees, because these were not ordered by the court. (Code Civ. Proc., § 1033.5, subd. (b)(5).) However, the Court finds the \$213.70 in document retrieval fees should be allowed, because they were reasonably necessary to the litigation. (See <i>Naser v. Lakeridge Athletic Club</i> (2014) 227 Cal.App.4th 571, 578.) Thus, the Court taxes these costs, in part, and awards a total of \$213.70 in “other” discretionary costs. After these deductions are made, Plaintiff is entitled to an award of \$9,027.47 in costs against Defendant Onnyx Investments, LLC. Plaintiff shall give notice of the ruling.
6.	2025-1530331 Colombana vs. Colombana	Defendant Danissa Columbana’s general demurrer to Plaintiff Brian Columbana’s Complaint is sustained as to the 1st–3rd, 5th, and 6th causes of action with 30 days leave to amend. The demurrer is overruled as to the 4th, 7th, and 8th causes of action. The special demurrer is overruled in its entirety as the allegations in the complaint are not confusing, such that Defendant cannot determine what to respond to. (See <i>Khoury v. Maly’s of Calif., Inc.</i> (1993) 14 Cal.App.4th 612, 616; <i>Williams v. Beechnut Nutrition Corp.</i> (1986) 185 Cal.App.3d 135, 139.) Defendant’s request for judicial notice (“RJN”) is granted. A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the “four corners” of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452.

Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.)

On demurrer, a complaint must be liberally construed. (CCP § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.)

1st cause of action for extrinsic fraud

Defendant argues that this, as well as Plaintiff's other causes of action, are barred by the statute of limitations.

The statute of limitations for fraud is three years pursuant to Code Civ. Proc., § 338(d).

Plaintiff alleges in this cause of action that "Defendant's false testimony, concealment of income, concealment of cohabitation, and concealment of business accounts intentionally prevented Plaintiff from fully and fairly presenting his case at the December 10, 2021[,] support modification hearing." (Complaint, ¶ 29.)

These claims are the same that Plaintiff asserted in his application to set aside the child support order filed in family court dated 6/7/22. (See Defendant's RFJN.) In Plaintiff's declaration in support of his application he declares that he discovered the facts constituting the alleged fraud and perjury on 12/10/21. (RJN, Ex. A-024.)

These are prior judicial admissions that the Court may take judicial notice of, which contradict Plaintiff's current allegations. (See *Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal.App.4th 336, 344 ("the plaintiff may not plead facts that contradict the facts or positions that the plaintiff pleaded in earlier actions or suppress facts that prove the pleaded facts false.").)

Plaintiff filed this Complaint on 12/1/25, which is more than three years after 12/10/21 when he states he discovered the facts alleged in this cause of action.

Therefore, the demurrer is sustained as to the first cause of action.

2nd cause of action for intentional misrepresentation

Plaintiff similarly alleges in this cause of action that Defendant "knowingly made false statements of material fact, including... [t]hat she did not cohabit with Dustin Kirkland; [t]hat she had no

	other income beyond the amount listed; [t]hat she had no other bank accounts or credit card accounts; [t]hat she had no business interests; and [t]hat she received no financial assistance from others.” (Complaint, ¶ 35.) The same three-year statute of limitations applies. (Code Civ. Proc., § 338(d).) For the same reasons stated with respect to the first cause of action, the demurrer is also sustained as to this cause of action. <u>3rd cause of action for negligent misrepresentation</u> Plaintiff’s third cause of action is pled alternatively to the 2nd cause of action; Plaintiff alleges that Defendant made the statements alleged without reasonable grounds to believe they were true. (Complaint, ¶ 40.) The three-year statute in § 338(d) also applies to this cause of action. (See <i>William L. Lyon & Associates, Inc. v. Superior Court</i> (2012) 204 Cal.App.4th 1294, 1313-1314.) The demurrer is also sustained, accordingly. <u>4th cause of action for conversion</u> The elements of conversion are: “(1) the plaintiff’s ownership or right to possession of the property; (2) the defendant’s conversion by a wrongful act or disposition of property rights; and (3) damages.” (<i>Lee v. Hanley</i> (2015) 61 Cal.4th 1225, 1240.) The statute of limitations for conversion is 3 years. (Code Civ. Proc., § 338(c)(1).) Here, Plaintiff alleges that “Defendants wrongfully exercised dominion and control over Plaintiff’s property, including ... Plaintiff’s checks stolen from his mail and deposited after forging his signature; Plaintiff’s inheritance account information, which she unlawfully accessed and altered; and [t]he attempted withdrawal of \$5,335.” (Complaint, ¶ 44.) Plaintiff is not alleging the same facts as he alleged in the prior family law action regarding his child support obligations. Earlier in the Complaint, Plaintiff alleges that he was unaware of Defendant’s alleged wrongdoing until 2024 when he attempted to access his account and learned it had been frozen because of Defendant’s forgery and attempted theft. (Complaint, ¶ 27.) Plaintiff has stated a claim for conversion. Therefore, Defendant’s demurrer based on the statute of limitations is overruled to the 4th cause of action. <u>5th cause of action for identity theft</u> Civ. Code, § 1798.93(a) states: “A person may bring an action against a claimant to establish that the person is a victim of
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identity theft in connection with the claimant's claim against that person. If the claimant has brought an action to recover on its claim against the person, the person may file a cross-complaint to establish that the person is a victim of identity theft in connection with the claimant's claim." (Bold added.)

Plaintiff does not allege that Defendant is a claimant or creditor asserting a claim against him arising from identity theft. Rather, he alleges Defendant herself used his identifying information to obtain or attempt to obtain his property. Thus, the facts presently alleged do not state a cause of action against Defendant under Civil Code § 1798.93. The demurrer is sustained to the 5th cause of action with leave to amend.

6th cause of action for negligence per se - violation of Penal Code § 530.5

"Negligence may be presumed if (1) the defendant violated a statute; (2) the violation proximately caused injury to the plaintiff; (3) the injury resulted from an occurrence which the statute was designed to prevent; and (4) the plaintiff was one of the class of persons for whose protection the statute was adopted." (*Nowlon v. Koram Ins. Center, Inc.* (1991) 1 Cal.App.4th 1437, 1441.)

The records judicially noticed do not establish that Plaintiff was aware in 2021 or 2022 of the theft, forgery, alteration of account information, and attempted withdrawal alleged in this count. Thus, Defendant's statute-of-limitations argument does not establish that this claim is untimely.

However, negligence per se does not itself supply an independent negligence cause of action. Plaintiff's opposition acknowledges that Evidence Code § 669 may provide a negligence-per-se presumption only within an otherwise viable negligence claim and requests leave to amend to plead an appropriate civil theory based on the same conduct. Accordingly, the demurrer is sustained to the 6th cause of action with leave to amend.

7th cause of action for constructive trust

Defendant argues that this cause of action is based on the first, second and fourth causes of action for fraud and conversion, and because those causes of action are time-barred, this cause of action fails as well.

As noted above, the 4th cause of action is not time-barred as it is not based on what was previously alleged by Plaintiff in the family law matter.

		Thus, this cause of action is not subject to the statute of limitations to the extent Plaintiff seeks to impose a constructive trust on funds allegedly converted by Defendant per the claims in the 4th cause of action. The demurrer is likewise overruled as to the 7th cause of action. <u>8th cause of action for accounting</u> Plaintiff alleges that the “parties’ finances became intertwined through Defendant’s wrongful use of joint or diverted assets,” and that “Defendants [sic] alone possess knowledge of the true amounts Defendant Danissa Colombana took or concealed.” (Complaint, ¶¶ 62, 63.) The Statute of Limitations for an accounting claim is also three (3) years given that the gravamen of the claim is a taking of Plaintiff’s property. (§ 338(c).) The demurrer to this cause of action is also overruled as it is based on the same alleged facts as the conversion claim. <u>Collateral Estoppel and Res Judicata</u> Defendant’s arguments that collateral estoppel and res judicata bar Plaintiff’s Complaint are unavailing. Pursuant to the documents subject to the request for judicial notice, Plaintiff’s allegations in the family law proceeding were not adjudicated on their merits. (See <i>Alpha Mechanical, Heating & Air Conditioning, Inc. v. Travelers Casualty & Surety Co. of America</i> (2005) 133 Cal.App.4th 1319, 1326.) The court denied Plaintiff’s application because it was untimely. Thus, these doctrines do not apply. If Plaintiff decides not to amend his Complaint and move forward with the 4th, 7th, and 8th causes of action, he shall notify Defendant and this Court within 15 days, and Defendant shall have 15 days thereafter to file an Answer. The clerk will give notice.
8.	2025-1501960 Iron Mountain Holdings Inc. vs. Coastline Community Development Group, Inc.	<i>No tentative. The Court has questions for counsel.</i>

9.	2025-1524156 California Truckers Safety Association vs. Maruchan, Inc.	Defendant Maruchan, Inc.'s Demurrer to Plaintiff California Truckers Safety Association's First Amended Complaint is overruled. Defendant's request for judicial notice is granted. Plaintiff alleges that it insured Food Express, Inc. for workers' compensation liability; that Booker Washington was Food Express's employee; that Washington was injured in a slip-and-fall allegedly caused by Defendant's negligence; and that Plaintiff paid or became obligated to pay workers' compensation benefits on Washington's behalf. Plaintiff seeks reimbursement pursuant to Labor Code section 3852. These allegations are sufficient to state a statutory subrogation claim. Defendant does not principally challenge the sufficiency of the negligence allegations. Rather, Defendant contends Washington previously settled his personal injury action against Maruchan, released Defendant from liability, agreed to indemnify Defendant concerning liens and related claims, and thereafter dismissed his action with prejudice. Defendant therefore argues Plaintiff's present action is barred by claim preclusion, waiver, indemnity, and the prohibition against double recovery. The Court is not persuaded that the judicially noticeable materials establish those defenses as a matter of law at the pleading stage. Labor Code section 3852 authorizes an employer who has paid or become obligated to pay workers' compensation benefits to bring an action against the allegedly responsible third party. For purposes of this statutory scheme, the employer includes its workers' compensation insurer. The employer or carrier may seek reimbursement by filing an independent action against the third-party tortfeasor, intervening in the employee's action, or asserting a lien against the employee's recovery. Further, an employee's settlement of the employee's own claim does not necessarily extinguish the employer's statutory reimbursement right. <i>Van Nuis v. Los Angeles Soap Co.</i> (1973) 36 Cal.App.3d 222, 230, recognizes that where the employee settles his claim against the third party without the employer's consent, the employer may recover workers' compensation benefits by bringing an action against the third party under Labor Code section 3852. Defendant relies substantially on <i>Board of Administration v. Glover</i> (1983) 34 Cal.3d 906 and related authorities prohibiting double recovery and double liability. Those principles may ultimately provide Defendant with a defense if the evidence establishes that Maruchan settled Washington's claim without knowledge of Plaintiff's reimbursement interest and that the circumstances
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otherwise bring the case within *Glover*. Defendant expressly asserts that it “did not actually know of benefits paid out to employee during litigation.”

That factual proposition, however, is not established by the FAC or by a matter of which the Court may take judicial notice for its truth. Plaintiff specifically disputes whether Maruchan knew or reasonably should have known of the workers’ compensation claim, whether Plaintiff received statutory notice of Washington’s lawsuit or settlement, whether Plaintiff consented to the settlement, and whether the settlement validly encompassed Plaintiff’s separate reimbursement interest. Those matters cannot be resolved adversely to Plaintiff on demurrer.

Indeed, the settlement provisions quoted by Defendant expressly address workers’ compensation liens and statutory notice obligations. Washington agreed to bear responsibility for workers’ compensation liens and agreed that he and his attorneys would be responsible for statutory obligations and notice duties concerning any concurrent workers’ compensation claim. The existence of those provisions does not establish Maruchan’s knowledge of Plaintiff’s particular claim, but it further demonstrates why the notice and knowledge issues cannot be resolved as a matter of law on this pleading.

Defendant’s claim-preclusion argument also does not establish a bar at this stage. Even assuming Washington’s dismissal with prejudice following settlement constitutes a sufficiently final adjudication for claim-preclusion purposes, Defendant has not established that Plaintiff was a party to Washington’s action or was in privity with Washington with respect to Plaintiff’s separate statutory reimbursement right. Plaintiff alleges and argues that it possesses its own statutory reimbursement interest under the workers’ compensation scheme.

Nor does Washington’s contractual release or indemnity undertaking itself extinguish Plaintiff’s claim. Plaintiff was not a signatory to Washington’s settlement agreement. The agreement may afford Maruchan contractual rights against Washington concerning indemnity or lien responsibility, but on the present record it does not establish that Plaintiff itself released, waived, or consented to extinguishment of its statutory claim. Similarly, waiver has not been established as a matter of law. Nothing in the FAC or judicially noticeable materials conclusively establishes that Plaintiff received statutory notice of Washington’s action or settlement and thereafter intentionally relinquished its reimbursement rights. Waiver may arise where an employer

		receives statutory notice and fails to assert its rights, but the existence of such notice is not established here. Accordingly, although Defendant may raise its settlement, notice, waiver, indemnity, double-recovery, and <i>Glover</i> defenses on a developed factual record, those defenses do not defeat Plaintiff's statutory subrogation claim as a matter of law on demurrer. The demurrer is therefore overruled. Plaintiff shall give notice.
10.	2023-1355916 Jahanbin vs. 1- C.S.I. Patrol Service Inc.	The unopposed general and special demurrer by Defendants C.S.I. Patrol Service, Inc. and January Rushan (collectively, "Defendants") to the Fourth Amended Complaint ("4thAC") filed by Plaintiff Khosrow Jahanbin ("Plaintiff") and each of the four causes of action alleged therein is sustained. Defendants' unopposed motion to strike is moot. <u>DEMURRER TO FOURTH AMENDED COMPLAINT</u> Defendants' request for the Court to take judicial notice of Plaintiff's 4thAC is denied. It is unnecessary to ask the court to take judicial notice of materials previously filed in this case. A party may "simply call the court's attention to such papers." (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 9:53.1a.) CRC Rule 2.112 provides: Each separately stated cause of action, count, or defense must specifically state: (1) Its number (e.g., "first cause of action"); (2) Its nature (e.g., "for fraud"); (3) The party asserting it if more than one party is represented on the pleading (e.g., "by plaintiff Jones"); and (4) The party or parties to whom it is directed (e.g., "against defendant Smith"). Failure to comply with CRC 2.112 presumably renders a complaint subject to <i>motion to strike</i> or a <i>special demurrer for uncertainty</i>. (<i>Grappo v. McMills</i> (2017) 11 Cal.App.5th 996, 1014; Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2023) ¶ 6:113.) Like Plaintiff's First Amended Complaint, Second Amended Complaint, and first, second, and fifth through seventh causes of action in Plaintiff's Third Amended Complaint, Plaintiff's 4thAC does not comply with Rule 2.112. Although Plaintiff identifies four causes of action on the first page of the 4thAC, Plaintiff did not allege against which defendant(s) each cause of

	action is alleged. Nor does Plaintiff identify which facts support each cause of action. Accordingly, the special demurrer for uncertainty to the 4thAC and the four causes of action alleged therein are sustained. Defendant also demurs generally to the 4thAC and each of the four causes of action alleged therein. The essential elements of a cause of action for assault are: (1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed she was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm. (<i>So v. Shin</i> (2013) 212 Cal.App.4th 652, 668-669.) Plaintiff did not allege sufficient facts to state this cause of action. "The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching." (<i>So v. Shin</i> (2013) 212 Cal.App.4th 652, 669 [citing CACI 1300].) Plaintiff did not allege sufficient facts to state a cause of action for battery. Plaintiff appears to bring a cause of action for civil harassment. CCP section 527.6, subdivision (b)(3) defines harassment to be "unlawful violence, a credible threat of violence, or a knowing and willful course of conduct directed at a specific person that seriously alarms, annoys, or harasses the person, and that serves no legitimate purpose. The course of conduct must be that which would cause a reasonable person to suffer substantial emotional distress, and must actually cause substantial emotional distress to the petitioner." (Code Civ. Proc., § 527.6, subd. (b)(3); see <i>Thomas v. Quintero</i> (2005) 126 Cal.App.4th 635, 648.) Plaintiff did not allege sufficient facts to state this cause of action. There are two types of emotional distress claims – intentional infliction of emotional distress and negligent infliction of emotional
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distress. Plaintiff did not identify which of the two types of emotional distress he is alleging in the 4thAC.

The elements to plead a cause of action for intentional infliction of emotional distress are: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 832.)

"Behavior may be considered outrageous if a defendant (1) abuses a relation or position that gives him power to damage the plaintiff's interests; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress... ." (*Molko v. Holy Spirit Ass'n* (1988) 46 Cal. 3d 1092, 1122 [superseded by statute on other grounds].)

"The law intervenes only where the distress inflicted is so severe that no reasonable man could be expected to endure it. The intensity and duration of the distress are factors to be considered in determining the severity." (*Fletcher v. Western Life Insurance Co.* (1970) 10 Cal.App.3d 376, 397.) "Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Davidson v. City of Westminster* (1982) 32 Cal.3d 197, 209.)

"Discomfort, worry, anxiety, upset stomach, concern, and agitation" as the result of defendant's conduct do not constitute emotional distress of "such substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it." (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 105.) "[O]rdinary defendants are not liable for mere insult, indignity, annoyance, or even threats, where the case is lacking in other circumstances of aggravation. The reasons are not far to seek. Our manners, and with them our law, have not yet progressed to the point where we are able to afford a remedy in the form of tort damages for all intended mental disturbance. Liabilities of course cannot be extended to every trivial indignity.... Accordingly, it is generally held that there can be no recovery for mere profanity, obscenity, or abuse, without circumstances of aggravation, or for insults, indignities or threats which are considered to amount to nothing more than mere annoyances. The plaintiff cannot recover merely because of hurt feelings." (*Yurick v. Superior Court* (1989) 209 Cal.App.3d 1116, 1128.)

In addition, it is “not enough that the conduct be intentional and outrageous. It must be conduct directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware.” (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.)

The cause of action for negligent infliction of emotional distress is not an independent tort. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868.) “The tort of negligent infliction of emotional distress is a variation of the tort of negligence. The traditional elements of duty, breach of duty, causation and damages apply.” (*Slaughter vs. Legal Process & Courier Serv.* (1984) 162 Cal.App.3d 1236, 1249.)

Plaintiff did not allege sufficient facts to state either intentional infliction of emotional distress or negligent infliction of emotional distress.

Accordingly, Defendants’ general demurrer to Plaintiff’s 4thAC and each cause of action therein is sustained.

The Court notes the Court ordered the parties to meet and confer before Plaintiff filed a fourth amended complaint pursuant to CCP section 430.41, subdivision (c), in sustaining Defendants’ demurrer to Plaintiff’s Third Amended Complaint. (3/11/2026 Minute Order.) There is no showing whether the parties met and conferred before Plaintiff filed the 4thAC.

This is Plaintiff’s Fourth Amended Complaint. The Court previously sustained Defendants’ special demurrer on the same ground (failure to comply with CRC Rule 2.112) on three occasions with leave to amend.

CCP section 430.31, subdivision (e)(1) provides: “In response to a demurrer and prior to the case being at issue, a complaint or cross-complaint shall not be amended more than three times, absent an offer to the trial court as to such additional facts to be pleaded that there is a reasonable possibility the defect can be cured to state a cause of action. The three-amendment limit shall not include an amendment made without leave of the court pursuant to Section 472, provided the amendment is made before a demurrer to the original complaint or cross-complaint is filed.”

Plaintiff did not oppose the demurrer and did not show how the 4thAC may be properly amended to comply with CRC Rule 2.112 and how additional facts may be alleged to state each of the four causes of action. Leave to amend is denied. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145; *Mohler v. County of Santa Clara* (2023) 92 Cal.App.5th 418, 428.)

		<u>MOTION TO STRIKE FOURTH AMENDED COMPLAINT</u> Defendants’ motion to strike is therefore moot. Defendants shall give notice.
11.	2026-1578614 State Bar of California vs. Minnella	***MODIFIED TENTATIVE AFTER SUBMISSION OF RESPONDENT DECLARATIONS The matter was initially set on 8/26/26. At the hearing, the Court inquired of Respondent’s counsel why no declarations had been submitted with the opposition. Respondent’s counsel asked for additional time to file declarations. The Court granted the request and continued the matter one week, to 9/2/26. The Court has received, read, and considered the newly submitted declarations (ROAs 70, 72, 73, 74, 75, 76, 77, 78, 79, 80, 81, and 82). At the outset, the Court notes that it received via United States mail, addressed to the Court by name, an unsolicited ex parte communication essentially attesting to Respondent John Minnella’s good character. The Court directed the clerk not to file the unauthorized communication, and the Court did not consider it in ruling on the petition. The State Bar of California’s Petition for Assumption of Jurisdiction over the unauthorized law practice of Respondent John Minnella is granted. Business and Professions Code section 6125 prohibits a person from practicing law in California unless the person is an active licensee of the State Bar. Giving legal advice and preparing legal instruments, whether or not rendered in the course of litigation, constitutes the practice of law. (<i>State Bar of California v. Superior Court</i> (1929) 207 Cal. 323, 335.) A single such act is sufficient. (<i>People v. Ring</i> (1937) 26 Cal.App.2d Supp. 768, 770–771.) Business and Professions Code section 6126, subdivision (a), provides in relevant part: “Any person advertising or holding himself or herself out as practicing or entitled to practice law or otherwise practicing law who is not an active licensee of the State Bar, or otherwise authorized pursuant to statute or court rule to practice law in this state at the time of doing so, is guilty of a misdemeanor....” An application under Business and Professions Code section 6126.3 must initially demonstrate probable cause to believe that the conduct described in section 6126, subdivision (a), has occurred and that the interests of a client or interested person or entity will be

	prejudiced if the proceeding is not maintained. (Bus. & Prof. Code, § 6126.3, subd. (c).) At the final hearing, however, the Court must find that the conduct described in section 6126, subdivision (a), has occurred and that the interests of a client or interested person or entity will be prejudiced if the proceeding is not maintained. If those findings are made, the Court may assume jurisdiction over the person's practice. (Bus. & Prof. Code, § 6126.3, subd. (e).) The State Bar bears the burden of proving the facts necessary for final relief by a preponderance of the evidence. (Evid. Code, § 115.) The State Bar has met that burden. Respondent is not, and has never been, a licensee of the California State Bar. He is not registered or bonded as an immigration consultant with the California Secretary of State and does not work under the direction or supervision of a licensed California attorney. (Cruz Decl., ¶¶ 4–5, 18, Exs. 1–2.) The evidence establishes that Respondent performed work for clients that included preparing and filing an I-130 family petition, preparing an asylum request, preparing DACA applications, preparing and filing responses to Requests for Evidence, and drafting a declaration intended to support an asylum application. (Cruz Decl., ¶¶ 7, 10–12, Exs. 4, 6–8.) Respondent's retainer agreement provided that a client's matter would be handled as determined by Respondent's "professional judgment" and that he would exercise that judgment according to his professional experience and knowledge, tactics and strategies, legality, ethics, the client's best interests, and other considerations within Respondent's sole discretion. (Cruz Decl., ¶ 8, Ex. 4.) Respondent also admitted to Investigator Cruz that he evaluates his clients' facts, provides clients with an analysis of their situations, and selects the forms he believes they require. Respondent characterized the advice he provides as based on "common knowledge." (Cruz Decl., ¶ 19.) The characterization does not alter the nature of the conduct. Evaluating a client's circumstances, selecting an immigration remedy or form, advising the client concerning that selection, and preparing documents requiring the exercise of legal judgment are not merely clerical services. The evidence also shows that Respondent conducted his business at premises identified as the "Law Offices of Minnella, English & Wiksell." (Cruz Decl., ¶ 17, Ex. 13.) Respondent maintained a website under the name Minnellalaw.com offering services in the
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	areas of immigration, citizenship, visas, asylum and refugee matters, and deportation defense, while representing that he had provided such services for more than 40 years. (Cruz Decl., ¶ 22, Ex. 15.) Respondent’s Facebook page under the name J.L. Minnella and Associates/Minnella Romano and Associates described the business as an “International Law Firm and Immigration Consultancy.” The page stated that Respondent was licensed to practice law in Nicaragua and certain reciprocal countries in Central and Latin America but was not licensed in any United States jurisdiction. It further stated that, in the United States, Respondent handled immigration, citizenship, nationality, visa, and consular matters as an immigration consultancy. (Cruz Decl., ¶ 23, Ex. 16.) Respondent’s disclosure that he was not licensed in the United States does not defeat the petition. Section 6126, subdivision (a), applies not only to a person who falsely holds himself out as entitled to practice law, but also to a person who “otherwise practic[es] law” without authorization. The evidence establishes that Respondent did the latter. Following the initial hearing, the Court continued the matter for one week to permit Respondent to submit the evidentiary declarations that had not accompanied his opposition. The Court has considered Respondent’s supplemental declaration (ROA 72) and the declarations filed at ROA 70 and ROA 73-82. They do not alter the Court’s conclusion. Respondent now denies that he independently evaluated legal eligibility, selected immigration remedies, or provided individualized legal advice. He characterizes his work as typing information supplied by customers, assembling documents selected by them, and locating the agency form corresponding to a benefit the customer had already chosen. He also disputes Investigator Cruz’s description of their January 2026 conversation, stating that, if he used the word “analysis,” he meant checking information for completeness and internal consistency, and that, if he referred to selecting a form, he meant locating the form corresponding to a benefit already requested. (Minnella Decl., ¶¶ 11, 13–19, 33.) The Court has considered those denials but finds them less persuasive than Investigator Cruz’s account and Respondent’s own contemporaneous records. Those records describe substantially more than clerical transcription. Respondent’s fee agreement authorized him to exercise “professional judgment” based on his “professional experience and knowledge,” “tactics and strategies,” legality, ethics,
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and the client's best interests, all within Respondent's sole discretion. Respondent's June 2015 accounting charged for preparing an asylum request, DACA applications, and a response to a Request for Evidence. It further stated that the asylum request could not "presently" be filed because the client lacked a United States citizen or permanent-resident spouse, child, or parent (an assessment of legal eligibility, not a clerical determination). In April 2024, Respondent wrote that he had reviewed and revised the client's asylum declaration, charged four hours at \$250 per hour for that work, referred to the client's "established benefits under the immigration laws," and described helping the client improve his status as Respondent's "obligation." These contemporaneous descriptions are consistent with Investigator Cruz's account that Respondent analyzed clients' circumstances, advised them, and selected the forms he believed they required.

The third-party declarations likewise do not rebut the decisive evidence. Most state that Respondent disclosed that he was not licensed in the United States, was regarded as honest and helpful, prepared forms using information supplied by clients, and referred legal issues to licensed attorneys. Several declarants also state, in substantially identical and conclusory language, that Respondent did not advise them concerning legal positions or strategy. (ROA 70, 73–76, 78–82.) Those declarations may support Respondent's position that he did not falsely claim California licensure, *but the petition does not depend on such a misrepresentation*. Section 6126, subdivision (a), separately reaches a person who "otherwise practic[es] law" without authorization. Nor does evidence that Respondent performed permissible clerical work for some clients disprove the evidence that he performed legal work for Delgado Ramirez and others. A single unauthorized act is sufficient.

The declarations from attorneys Vital D'Carpio and Ryan English do not change the analysis. D'Carpio states that Respondent referred prospective clients to his office and that those persons understood Respondent was not a lawyer. English confirms that he and Respondent merely shared office space and explains that his earlier assumption that Respondent was a lawyer was not based on any express representation by Respondent. (ROA 76–77.) The Court accepts that evidence for purposes of this ruling. It reduces the significance of the shared-office signage, but it does not address, much less negate, the evidence of Respondent's own immigration work, admissions, fee agreement, accounting, and client communications.

Respondent's declaration also reinforces the need to maintain this proceeding. He identifies multiple potentially time-sensitive client matters and admits that, after execution of the interim order, he

continued customer contact and form-related activity. Among other things, he assisted with submission of an I-360, I-485, and I-765 package; handled materials for a response to a Request for Evidence due September 5, 2026, and accepted a \$500 payment on the client's account; provided another client an I-765 application and accepted a \$200 payment; and was asked to file another client's completed I-485 application. (Minnella Decl., ¶¶ 25–32.) Even accepting Respondent's characterization of those acts as administrative, they confirm an ongoing immigration practice involving active matters, deadlines, client files, and client funds. They therefore *strengthen*, rather than undermine, the finding that client notification, deadline protection, and orderly return or transfer of files are necessary.

Respondent's reliance on *Benninghoff v. Superior Court* (2006) 136 Cal.App.4th 61 is unpersuasive. *Benninghoff* concerns legal activity affirmatively authorized by federal law. Respondent identifies no statute, regulation, federal admission, agency accreditation, or other federal authorization permitting him to represent persons in immigration matters. His license to practice law in Nicaragua does not, by itself, authorize him to practice United States immigration law in California.

The Court therefore finds by a preponderance of the evidence that Respondent engaged in the unauthorized practice of law within the meaning of Business and Professions Code section 6126, subdivision (a).

The Court further finds that the interests of Respondent's clients will be prejudiced if this proceeding is not maintained. Respondent maintained immigration client files involving matters potentially subject to deadlines and other time-sensitive obligations. Those clients must be notified that Respondent is not authorized to practice law in California, advised that it may be in their best interests to obtain licensed counsel, and afforded an orderly means of recovering their files. An injunction alone would not accomplish the client-notification, deadline-protection, and file-return functions contemplated by section 6126.3, subdivision (e). The restriction against unlicensed practice also protects members of the public from being advised and represented by unqualified persons and protects the integrity of the legal process. (See *Russell v. Dopp* (1995) 36 Cal.App.4th 765, 773.)

Respondent requests the return of personal materials unrelated to the affected practice. That request is reasonable, although Petitioner represents that any personal documents, foreign-law documents, personal mail, and other materials unrelated to the unauthorized practice were taken inadvertently and will be returned. The Court's jurisdiction over Respondent's files, records,

and practice exists only for the limited purposes stated in section 6126.3. (Bus. & Prof. Code, § 6126.3, subd. (e).) Petitioner shall therefore use reasonable procedures to identify and promptly return materials that are plainly personal or otherwise unrelated to the affected practice. Either party may apply to the Court for further direction concerning any genuinely disputed category of property.

Respondent also objects that the interim order permits the deletion of electronic data. Petitioner represents that it did not confiscate any computers or storage devices from Respondent's business address and has no access to any cloud-based system belonging to Respondent. The issue therefore has no present practical application. Nevertheless, no electronic data shall be permanently erased or destroyed pursuant to the final order absent client authorization, written agreement of the parties, or further order of the Court.

Respondent's remaining requests for an itemized file-by-file inventory, supervised access to client files, a formal clawback procedure, and automatic in-camera review of disputed materials are not required by section 6126.3 and are not warranted on the present record. Section 6126.3, subdivision (f), requires any person examining the files to observe any applicable lawyer-client privilege and permits disclosure only to the extent reasonably necessary to accomplish the statute's purposes. That obligation remains in effect. Nothing in that provision, however, makes Respondent or his present counsel the holder of a client's privilege or establishes a right to continued access to client information used in the unauthorized practice of law.

Business and Professions Code section 6030 authorizes the State Bar to seek an injunction against a violation or threatened violation of Article 7 of the State Bar Act, commencing with section 6125, without an undertaking. Respondent's past conduct, his continuing insistence that the services he provided were permissible immigration consulting, and the nature and duration of his practice establish an adequate basis for prospective injunctive relief.

Accordingly, having made the findings required by Business and Professions Code section 6126.3, subdivision (e), the Court grants the petition and will issue permanent orders assuming jurisdiction over the unauthorized law practice of John Minnella, doing business as J.L. Minnella and Associates and Minnella Romano and Associates.

Respondent is permanently enjoined from advertising or holding himself out as entitled to practice law in California, or otherwise practicing law in California, unless he is an active licensee of the

		California State Bar or is otherwise authorized to perform the particular activity pursuant to statute or court rule. Petitioner shall submit a revised proposed final order consistent with this ruling and shall give notice.
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